

24CHCV04745 24CHCV04745

County: los-angeles

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Case Number: 24CHCV04745 Hearing Date: July 27, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 24, 2026

MOTION FOR

ATTORNEY FEES

Los Angeles Superior Court Case # 24CHCV04745

Motion Filed: 2/23/26

MOVING PARTY: Plaintiff Michael Forsythe

("Plaintiff")

RESPONDING PARTY: Defendant General Motors, LLC

("Defendant")

NOTICE: NOT OK (fails to specify the amount of attorney fees and costs sought)

RELIEF REQUESTED: An order granting Plaintiff his attorney

fees in the amount of \$31,350.60, and costs and expenses in the amount of \$2,450.06.

TENTATIVE RULING: The motion is granted in part.

Plaintiffs are awarded \$24,884.79 in attorney fees and costs.

BACKGROUND

On 2/23/26, Plaintiff filed the instant motion. On 7/14/26, Defendant filed its opposition. On 7/20/26, Plaintiff filed his reply.

ANALYSIS

A.

Right to Recovery

An award of attorney fees is proper when authorized by contract, statute, or law. (Code Civ. Proc. §§ 1032, subd. (b); 1033.5, subd. (a)(10).) Here, the Song-Beverly Act authorizes a buyer “to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794, subd. (d).)

Moreover, the judgment entered in the matter expressly states that “Plaintiffs attorney’s fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) to be determined by the Court via noticed motion. For purposes of any such motion, GM agrees that Plaintiff is the prevailing party.” (12/16/25 Judgment ¶ 2.) Based on the foregoing, the Court finds that the instant motion is authorized by law.

B.

Attorney Fees Incurred

A buyer prevailing under the Song-Beverly Act may recover “reasonable” attorney fees and costs as determined by the Court. (Civ. Code § 1794, subd. (d).) “The burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gonzalez

v. Santa Clara County Dept. of Social Services (2017) 9 Cal.App.5th 162, 169.) In determining a reasonable fee award, the Court begins with the lodestar method of calculation, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Karton v. Ari Design & Construction, Inc. (2021) 61 Cal.App.5th 734, 744; PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095–1096.)

Here,
Plaintiff seeks to recover \$26,125.50, encompassing 48.5 hours of his attorneys' time, billed at the following rates:

Name

Title

Hourly Rate

Hours

Total

Joseph Kaufman

Senior
Associate Attorney

\$595.00

30.5

\$18,147.50

\$615.00

9.4

\$5,781.00

Chris Hunt

Associate

Attorney

\$395.00

2.6

\$1,027.00

Melissa

Lopez

Paralegal

\$195.00

6.0

\$1,170.00

Total

48.5

\$26,125.50

(Kaufman Decl. ¶ 17.)

1. Counsel's

Hourly Rate

When

determining a reasonable hourly rate, courts consider whether the stated rates "are within the range of reasonable rates charged by and judicially awarded [to] comparable attorneys for comparable work." (Children's Hosp. & Med. Ctr. v. Bonta (2002) 97 Cal.App.4th 740, 783.)

Here,

Plaintiff asserts that the rates charged by his attorneys are commensurate with the experience and skill of the attorneys involved, and have been approved by

courts in the past. (Pl.'s Mot. 6:4–26; Kaufman Decl. ¶¶ 7–16.) The Court notes that Defendant does not challenge the reasonableness of Plaintiff's counsel's hourly billing rates.

Based on

the foregoing, the Court finds that Plaintiff has sufficiently shown that his attorneys' hourly billing rates are commensurate with their experience, and fall within the range of reasonable rates charged by attorneys in similar cases. Accordingly, the Court declines to reduce Plaintiff's counsel's hourly billing rates.

2. Hours

Expended

Plaintiff

seeks to recover attorney fees for the 48.5 hours expended by his attorneys on this matter, totaling \$26,125.50. Plaintiff proffers an itemized list of time entries detailing his attorneys' work on this matter. (Ex. 1 to Kaufman Decl.) Defendant argues that “a close examination of Counsel's activities reveals several forms of bill padding that GM has seen repeated due to Counsel's heavy reliance on templates at every phase of litigation.” (Def.'s Opp. 4:6–8.) Specifically, Defendant challenges Plaintiff's counsel's time spent on (1) pre-litigation work; (2) reviewing Defendant's answer and objections; (3) discovery efforts, including drafting requests and responses, reviewing Defendant's responses and initial disclosures, and deposing Defendant's Person Most Qualified (“PMQ”); (4) the vehicle surrender; (3) case management; and (5) the instant fee motion.

a.

Pre-Litigation Work

Defendant

argues that the 3 hours “spent evaluating a potential client prior to engagement are business expenses routinely treated as overhead. Such time is not properly billed (retroactively) to one's client, and therefore not properly billed to GM.” (Def.'s Opp. 4:15–18.) Defendant “therefore, requests that Counsel's time be reduced by 2.0 hours (\$1,190.00).” (Id. at 4:20–21.)

In reply,

Plaintiff argues that “these tasks are part of commencing and pursuing the litigation and are recoverable. Indeed, Civ. Code § 1794(d) of the SBA

determines the recoverable attorney's fees, which include those that are 'reasonably incurred by the buyer in connection with the commencement and prosecution of such action.'" (Pl.'s Reply 3:21–24.) The Court agrees, and therefore declines to reduce these time entries.

b.

Defendant's Answer, Deposition Notice Objections

Defendant

further argues that the 1.8 hours billed by Mr. Kaufman for reviewing Defendant's answer and objections to Plaintiff's deposition notices are improperly blockbilled and excessive because "GM, like Counsel, uses the same Answer and objections, so Counsel would not need to spend almost two hours here. Given the templated nature of the work, 15 minutes should be enough." (Def.'s Opp. 4:22–28.) Defendant "requests a reduction of 1.5 hours (\$773.50)." (Id. at 4:28.)

In reply,

Plaintiff argues that "the entries are not block billed and identify the specific amounts of time for each task." (Pl.'s Reply 4:8.) Plaintiff further argues that "the remaining 1.0 hour of time (which GM falsely states as reviewing the answer and objections) is for correspondence to the client, preparing a C.C.P. § 2016 demand, and meeting and conferring with GM regarding its objections to the PMQ deposition notice." (Id. at 4:9–12.)

Based on

the foregoing, the Court declines to reduce these time entries.

c.

Discovery

Defendant

further argues that the "like every other aspect of discovery in this case—neither Plaintiff's requests nor GM's responses to those requests were novel nor varied significantly from prior cases. Indeed, Plaintiff's requests and GM's responses vary little from case to case." (Def.'s Opp. 5:3–6.) Defendant challenges the 6.5 hours billed by Plaintiff's counsel in relation to reviewing Defendant's discovery responses, and drafting Plaintiff's discovery responses. (Id. at 5:1–17.) Defendant further argues that "GM's initial disclosures are nearly the same in every case, so Counsel should not need an hour to review

them.” (Id. at 5:20–21.)

Defendant

also argues that the 3.9 hours billed in relation of the deposition of Defendant’s PMQ “is excessive given the routine and limited scope of GM’s document production and the templated nature of the deposition notice categories. It is unreasonable for Counsel to spend an unknown amount of time reviewing already familiar materials and preparing an outline, given Plaintiff’s deposition notice covered only standard topics repeated from similar cases.” (Id. at 5:24–6:2.)

In reply,

Plaintiff argues that “while objections to requests overlap between cases, the discovery responses themselves plainly vary by client. In sum, this time was reasonably incurred and is recoverable.” (Pl.’s Reply 5:6–8.) “Further, GM’s assertion that its initial disclosures are similar in other cases is irrelevant, as Plaintiff’s counsel must still review the documents.” (Id. at 5:12–14.) As to the time incurred in relation to the deposition of Defendant’s PMQ, Plaintiff maintains that “the time incurred was reasonable, and GM’s conclusory, arbitrary request should be rejected.” (Id. at 5:25.)

Based on

the foregoing, and noting the template nature of discovery efforts in Song-Beverly cases, the Court therefore reduces the time actually incurred for these tasks by 5.9 hours (by JK), for a total reduction of \$3,510.50.

d.

Vehicle Surrender

Defendant

further argues that 8 hours billed by Plaintiff’s counsel (5.4 hours by JK, 2.6 hours by ML) for coordinating the post-settlement surrender of the subject vehicle and attending the surrender should be struck because “GM should not be required to reimburse unnecessary fees that were not incurred to litigation Plaintiff’s case, but rather to further pad Counsel’s time.” (Def.’s Opp. 6:5–17.)

In reply,

Plaintiff argues that “the total time [Mr. Kaufman] billed [for these tasks] is 1.7 hours, and not 5.4 hours.” (Pl.’s Reply 6:5–7.) Plaintiff further argues

that “these tasks are part of pursuing and completing a lemon law claim and are therefore recoverable.” (Id. at 6:9–10.) Plaintiff asserts that “because the settlement funds were being exchanged at the time of the surrender, Plaintiff’s associate attended to ensure compliance and to protect the client’s interests due to GM’s violation of the parties’ agreement.” (Id. at 6:26–7:2.)

The Court

finds that the total amount of time billed in connection with coordinating and attending the vehicle surrender is 6.8 hours (2.3 hours by JK, 1.9 hours by ML, and 2.6 hours by CRH). The Court agrees with Plaintiff that these tasks were reasonably incurred as part of the conclusion of the instant litigation, and therefore declines to strike these time entries.

e.

Case Management

Defendant

further argues that it “should not be billed for various clerical or internal administrative performed by the firm paralegal, Ms. Lopez, for a total of 6.0 hours (\$1,170.00).” (Def.’s Opp. 6:18–20.) In reply, Plaintiff argues that “GM makes a meritless and conclusory challenge to entries ‘throughout,’ but GM does not even identify the dates, descriptions, or specific amounts of the entries being challenged. Moreover, one cannot even confirm the veracity of the amount of time challenged under these circumstances. As such, Plaintiff cannot even fully address GM’s vague assertion.” (Pl.’s Reply 7:6–9.) The Court agrees, and therefore declines to strike or tax any of Plaintiff’s counsel’s time entries on this basis.

f.

Fee Motion

Defendant

further argues that Plaintiff “should not get full credit for the 6.5 hours (\$3,997.50) that Counsel claims that it has spent or will spend on its fee motion.” (Def.’s Opp. 6:26–27.) “GM submits that 1.0 hour to prepare the fee motion, 1.0 hour to prepare a reply brief, and 1.0 hour to attend the hearing will adequately compensate Counsel’s efforts, and thus asks for a reduction of 3.5 hours (\$2,152.50).” (Id. at 7:1–4.)

In reply,

Plaintiff clarifies that “the invoice plainly demonstrates that Plaintiff’s counsel billed 2.5 hours on 2/17/26 to prepare the fee motion and supporting documents, billed 1.0 hour to review the opposition and prepare a reply on 7/15/26, and 1.0 hour to prepare for and attend the hearing on 7/27/26. This totals 4.5 hours, and not 6.5 hours.” (Pl.’s Reply 7:19–22.) Plaintiff further asserts that “the actual amount of time on these tasks was significantly more than what was billed and has already been reduced.” (Id. at 8:1–2.) “Despite incurring significantly more time than what was billed, Plaintiff maintains the same fee request.” (Id. at 8:5–7, citing Supp. Decl. of Joseph A. Kaufman ¶ 2.)

Based on the foregoing, the Court declines to reduce the time entries relating to the instant fee motion.

C.

Multiplier

“Once the lodestar has been calculated, the second step is to apply any positive or negative multipliers. The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (Santana v. FCA US, LLC (2020) 56 Cal.App.5th 334, 351 [internal quotations omitted].) “Perhaps the most common multiplier applied, at least where a plaintiff prevails, is a modifier for the contingent nature of the representation.” (Ibid.) Whether a multiplier is applied to adjust the lodestar amount based on the contingent nature and risk associated with the action and other factors, such as degree of skill required and ultimate success achieved is within the discretion of the trial court.

Here,

Plaintiff argues that he is entitled to recover a 1.2 multiplier enhancement because they “obtained a highly favorable result” and “Plaintiff’s counsel vigorously pursued Plaintiff’s case despite the potential for its efforts to go uncompensated.” (Pl.’s Mot. 9:21–10:11.) Defendant argues in opposition that no multiplier enhancement is warranted because “The vast majority of Counsel’s work is dedicated to breach-of-warranty actions under Song-Beverly, for which

the issues are virtually identical from case to case.” (Def.’s Opp. 7:25–27.)

Based on the foregoing, the Court finds that a multiplier enhancement is not warranted in this case. While Plaintiff ultimately prevailed, the action appears to have been a relatively straightforward Song-Beverly case. As such, the Court finds the lodestar fee award sufficient to compensate Plaintiff’s counsel.

D.
Costs Incurred

Plaintiff asserts that he incurred costs and expenses totaling \$2,450.06. (Pl.’s Mot. 12:6–11.) The Court notes that Plaintiff’s Memorandum of Costs lists that the total amount of costs to be recovered is \$2,450.10. (1/23/26 Mem. of Costs.) However, the Court finds that the total sum of costs outlined in Plaintiff’s Memorandum of Costs equals \$2,450.05. The Court addresses its analysis of Plaintiff’s cost award in its separate ruling on Defendant’s motion to tax costs, and finds it reasonable to award Plaintiff \$2,269.79 in costs.

Based on the foregoing, the Court finds it reasonable to award Plaintiff \$24,884.79 in attorney fees and costs, as outlined below:

Name

Title

Hourly Rate

Hours

Total

Joseph Kaufman

Senior Associate Attorney

\$595.00

24.6

\$14,637.00

\$615.00

9.4

\$5,781.00

Chris Hunt

Associate Attorney

\$395.00

2.6

\$1,027.00

Melissa Lopez

Paralegal

\$195.00

6.0

\$1,170.00

Subtotal

48.5

\$22,615.00

Costs

\$2,269.79

Total

\$24,884.79

CONCLUSION

The motion is granted in part. Plaintiff is awarded \$24,884.79 in attorney fees and costs.

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 24, 2026

MOTION TO STRIKE/TAX COSTS

Los Angeles Superior Court Case # 24CHCV04745

Motion

filed: 2/6/26

MOVING PARTY: Defendant General Motors, LLC

("Defendant")

RESPONDING PARTY: Plaintiff

Michael Forsythe ("Plaintiff")

NOTICE: OK

RELIEF

REQUESTED: An

order striking or taxing Plaintiffs' Memorandum of Costs.

TENTATIVE

RULING: The motion is granted in part. The Court taxes \$180.26 from Plaintiff's Memorandum of Costs.[1]

BACKGROUND

On 2/6/26, Defendant filed the instant motion. On 7/14/26, Plaintiff filed his opposition. On 7/20/26, Defendant filed its reply.

ANALYSIS

A prevailing party is entitled as a matter of right to recover costs of suit in any action or proceeding. (Code Civ. Proc. § 1032, subd. (b).) Costs recoverable under Section 1032 are restricted to those that are both reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc. § 1033.5, subd. (c)(2)–(3).)

A.

Reasonableness
and Necessity

A cost award may consist only of allowable costs which are “reasonable in amount” and “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc. § 1033.5, subd. (c)(2)–(3).) In a Song-Beverly action, the prevailing “buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794, subd. (d).)

If the charges listed on a submitted memorandum of costs appear to be proper charges on their face, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774–776.)

Here, Defendant seeks to tax \$395.57 from Plaintiff's memorandum of costs, relating to filing fees, subpoena costs, and other costs.

(Def.'s Mot. 4:23–5:10.)

1.

Filing Fees

Defendant argues that Plaintiff improperly seeks \$135.81 in filing fees relating to Plaintiff's motion for attorney fees, his reply to Defendant's opposition, and the request for dismissal, because "costs are only allowed if actually incurred; Counsel has spent nothing on future filings. These unnecessary costs should be disallowed.

(Id. at 4:23–26.)

In

opposition, Plaintiff argues that he "filed his Motion for Attorney's fees on July 2, 2026, and incurred a \$86.57 filing fee. ... Further, Plaintiff will incur \$24.62 in filing fees for his reply in support of Motion for Attorney's Fees, and \$24.62 for filing a request for dismissal." (Pl.'s Opp. 6:4–7, citing Decl. of Joseph A. Kaufman ¶¶ 2–3.) "In the unlikely event that these filings do not occur and GM pays for these costs, Plaintiff's counsel will reimburse GM the \$49.24." (Id. at 6:8–9.)

In reply,

Defendant maintains that "a cost claimed before it is incurred is not properly recoverable, and Counsel's belated filing does not cure a Memorandum that demanded the fee prospectively." (Def.'s Reply 4:18–19.) Defendant further argues that "an anticipated future cost is not a cost 'incurred.' Counsel's offer to 'reimburse GM' in the event a filing never occurs only underscores that these costs are contingent and unincurred." (Id. at 4:22–24.) The Court agrees. Accordingly, the Court taxes \$135.81 from Plaintiff's Memorandum of Costs for these costs that were not yet incurred on the date of the filing.

2.

Subpoena Costs

Defendant further argues that Plaintiff improperly seeks \$214.22 in costs for "record subpoenas" to third-party dealerships Simi Valley Chevrolet and Rydell Automotive Group. Defendant asserts that "these costs were optional and unnecessary as Plaintiff should have already been in possession of the documents sought (e.g. sales documents and repair orders). GM

should not be required to reimburse costs incurred by Plaintiff to obtain documents he failed to preserve.” (Def.’s Mot. 5:2–4.)

In opposition, Plaintiff argues that “in opposing these costs, GM again relies on the wrong legal standard of Cal. Code Civ. Proc. § 1033.5 and erroneously applies a heightened standard instead of the applicable language of the SBA and the Judgment. GM attempts to argue that these costs were unnecessary, but Plaintiff required the complete set of records from the servicing dealerships to pursue his case.” (Pl.’s Opp. 6:12–16.)

The Court agrees with Plaintiff that these expenses were reasonably incurred, and therefore declines to tax the costs thereof.

3.

Other Costs

Defendant further argues that Plaintiff improperly seeks \$45.54 in costs for postage and photocopies because “serving documents on opposing counsel and copying documents are inherent costs of doing business. Moreover, such costs are unnecessary when service of discovery via electronic means is available.” (Def.’s Mot. 5:7–9.)

In opposition, Plaintiff argues that the Song-Beverly Act “does not limit expenses for postage or photocopying. Accordingly, under [Civil Code] Section 1794(d), these were legitimate activities in order to pursue the case, were reasonably incurred, and should not be taxed.” (Pl.’s Opp. 6:23–25.)

In reply, Defendant maintains that “printing and serving documents on opposing counsel is overhead that every litigant bears.” (Def.’s Reply 5:22–23.) The Court agrees, and further notes that costs for “postage, telephone, and photocopying charges, except for exhibits” are not recoverable unless expressly authorized by law. (Code Civ. Proc. § 1033.5, subd. (b)(3).) Accordingly, the Court taxes \$44.45 from Plaintiff’s Memorandum of Costs for non-recoverable postage and photocopying costs.

CONCLUSION

The motion is granted in part. The Court taxes \$180.26 from Plaintiff's Memorandum of Costs.

[1]

The Court notes that Plaintiff's Memorandum of Costs lists that the total amount of costs to be recovered is \$2,450.10. (1/23/26 Mem. of Costs.) However, the Court finds that the total sum of costs outlined in Plaintiff's Memorandum of Costs equals \$2,450.05.